

		The Lease agreement, which is attached to the Complaint, contains a “Rent Cap and Just Cause Addendum” which is signed by both the Plaintiff and Defendant. The Notice of Exemption box is not marked, which means that the subject property is subject to the Tenant Protection Act. The Tenant Protection Act requires service of a notice to perform covenants or quit prior to a notice to quit under Civil Code § 1946.2(c). Additionally, the Plaintiff alleges in the Complaint a severe nuisance but failed to provide notice under California Code of Civil Procedure § 1161(4). A Notice to Quit cannot be amended. The Court of Appeal held that when a plaintiff fails to strictly comply with the requirement under California Code of Civil Procedure section 1161, a plaintiff fails to state a cause of action for unlawful detainer. (<i>Eshagian v. Cepeda</i> (2025) 112 Cal.App. 5th 433, 457-459.) The Court SUSTAINS the Demurrer without leave to amend. The Court dismisses the complaint. The Court Clerk is to provide notice of the Court’s ruling.
12	30-2026-01584179 Park Vista, Ltd. vs. Arredondo	The Court has read and considered the Defendants’ Demurrer to the Complaint (ROA 20), the Complaint (ROA 2) and the Plaintiff’s Opposition (ROA 23). The Court OVERRULES the Demurrer. The Complaint is facially sufficient to pursue a cause of action for an unlawful detainer. The Defendants are ordered to file an Answer within 5 business days. The Plaintiff is ordered to provide notice of the Court’s ruling.